

24STCV00841 24STCV00841

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-17

Motion: DEFENDANT'S MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET TWO

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C731%2C09%2F17%2F2026

Source SHA-256: 6ead841d00f9546606595acf50bba75efcb45db5cb9a0776f71ac3f60827a406

Case Number: 24STCV00841 Hearing Date: September 17, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

DONG GUO,

Plaintiff,

vs.

HUAN GUO; YUN ZHOU; MAILI LI;
CAINIAO SUPPLY CHAIN US. INC.; AND DOES 1 to 50, inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 24STCV00841

[TENTATIVE] ORDER RE: DEFENDANT'S
MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET TWO

Dept. 731

September 17, 2026

8:30 a.m.

Matter No. 13

Moving Party: Defendant, Huan Guo

Opposing Party: Plaintiff, Dong Guo

Notice: OK

Background Facts

Pleadings

Plaintiff Dong Guo ("Plaintiff")

sues Defendants Huan Guo, Yun Zhou, Maili Li, Cainiao Supply Chain US. Inc., and Does 1 to 50 pursuant to a June 17, 2024, First Amended Complaint ("FAC") alleging claims of (1) Intentional Infliction of Emotional Distress ("IIED"), (2) Defamation, and (3) False Imprisonment.

Plaintiff's claims arise from allegations that Defendants Guo, Zhou, and Li separately made false verbal statements to law enforcement officers relating to Plaintiff, including that Plaintiff was fired from his employment at 4PX Express USA and that Defendants feared a workplace shooting by Plaintiff, which led to Plaintiff's arrest by the Los Angeles County Sheriff's Department ("LASD") and caused the termination of Plaintiff's employment with two subsequent employers.

Motion Before the
Court

Now before the Court is Defendant Guo's motion to compel further responses from Plaintiff in relation to Defendant Guo's Special Interrogatories ("SI"), Set Two, Nos. 26, 29, 37, and 38, and request for monetary sanctions in the amount of \$1,400.00 against Plaintiff and "former counsel." The motion is opposed by Plaintiff, who argues that existing discovery responses satisfy his discovery obligations, a position disputed in Defendant Guo's September 10, 2026, reply.

Motion to Compel
Further Responses; Request for Sanctions

Motion to Compel
Further

i. Meet
and Confer

In the totality of the circumstances, sufficient meet and confer efforts preceded the filing of the motion, following service of supplemental responses on May 12, 2026. (Motion, Ferris Decl., ¶¶ 9-14, Exs. D-F; see Code Civ. Proc., § 2030.300, subd. (b)(1); see also Code Civ. Proc., § 2016.040.)

ii. Separate

Statement

The moving papers also satisfy the requirement to attach a separate statement to a motion for an order compelling further responses to production requests. (See Cal. Rules of Court, rule 3.1345, subd. (a)(1).)

iii. Merits

1. Legal Standard

A motion to compel a further response is used when a party gives unsatisfactory answers or makes untenable objections to interrogatories. (See Code Civ. Proc., § 2030.300, subd. (a); *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403 (*Sinaiko*) [interrogatories and demands to produce].)

To compel a further response to interrogatories, the movant can show that: (1) the responding party's answer to a particular interrogatory is evasive or incomplete (Code Civ. Proc., § 2030.300, subd. (a)(1)); (2) the responding party's exercise of the option to produce documents in response to an interrogatory was unwarranted or the required specification of those documents was inadequate (Code Civ. Proc., § 2030.300, subd. (a)(2)); and (3) the responding party's objection to an interrogatory is without merit or too general (Code Civ. Proc., § 2030.300, subd. (a)(3); see, e.g., *Williams v. Superior Court* (2017) 3 Cal.5th 531, 550 [defendant's argument that plaintiff was required to establish good cause or prove merits of underlying claim before propounding interrogatories without merit]).

2. Discussion

After review, the Court finds in favor of Plaintiff in part and in favor of Defendant Guo in part.

The motion lacks merit as to SI, Set One No. 26. As shown in the separate statement and in Exhibit F attached to the Ferris Declaration of the moving papers, in response to an interrogatory asking how Plaintiff calculated lost income in the amount of \$1.5 million, Plaintiff

responded by identifying a loss of approximately \$500,000.00 per year. While sparse, this information is responsive to the interrogatory by identifying the math supporting the \$1.5 million lost income projection: \$500,000.00 per year in lost income, necessarily times three years. Any additional or contradictory information raised later in the litigation may be addressed via impeachment or, if proper, via a motion related to evidence and issue sanctions or motions in limine, but for present purposes, the response is sufficient.

In contrast, the response to SI,

Set Two, No. 29 is evasive in the extreme, asking Plaintiff to identify dates on which he applied for employment with any employer since May 1, 2022, and Plaintiff responding, "I have not maintained that information." This objectively evasive response fails to comply with the text and spirit of Code of Civil Procedure section 2030.220, requiring, at the very least at subdivision (c), that Plaintiff "state" he "does not have personal knowledge sufficient to respond fully to an interrogatory" while also making "a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party," which would not be the case here. If Plaintiff has not mitigated damages, he should so state. If he has, he needs to make an attempt to obtain responsive information rather than simply relying on the passive statement that he has not maintained that information. If responsive mitigation information is found after a reasonable and good faith effort, then that information would necessarily go to SI, Set One, No. 29 as far as dates applied. In sum, relief is warranted for outright evasiveness in response to SI, Set One, No. 29.

Similarly, relief is warranted as

to SI, Set Two, Nos. 37-38, which ask that Plaintiff provide identifying contact information for possible witnesses in this action, with Plaintiff limiting responses to responses tantamount to 'I do not have present address or phone number' and then providing a phone number, but without providing full names, last known addresses, last known telephone numbers, or last known email addresses, where the phone numbers provided by Plaintiff in the supplemental responses appears to refer to "present" contact information, as limited in Plaintiff's initial response to the these interrogatories.

iv. Conclusion

Defendant Huan Guo's motion to

compel further responses to interrogatories is according DENIED in part and GRANTED in part as follows:

(1) DENIED as to SI, Set Two, No. 26;

(2) GRANTED as to SI, Set Two, Nos. 29 and 37-38.

Plaintiff Dong Guo is ORDERED to serve Code-compliant responses to Special Interrogatories, Set Two, Nos. 29, 37, and 38 within 14 days of the date of this Order.

b. Request
for Sanctions

i. Legal
Standard

The court must impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2030.300, subd. (d).)

The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed. (Cal. Rules of Court, rule 3.1348, subd. (a).)

ii. Discussion

The Court also finds sufficient bases to grant monetary sanctions.

Plaintiff Guo has engaged in discovery abuses by failing to respond to an authorized method of discovery by

serving thin, mostly evasive responses to discovery, as discussed above.

Moreover, sanctions are substantively supported by a declaration from counsel. (Motion, Ferris Decl., ¶¶ 15-18.)

The opposing papers do nothing to rebut a finding of sanctions other than to rely on the sparse, combination points and authorities / separate statement, with no supporting declaration, that constitutes the opposition.

However, sanctions are limited to Plaintiff, where counsel of record is not identified in the notice, as required by statute (Code Civ. Proc., § 2023.040.)

iii. Conclusion

Defendant Huan Guo's request for sanctions is accordingly GRANTED in the amount of \$1,440.00 as against Plaintiff Guo.

Plaintiff Dong Guo is ORDERED to remit sanctions in the amount of \$1,400.00 to Plaintiff's counsel within 14 days of the date of this Order.

Defendant Huan Guo is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 17, 2026 _____

MARK C. KIM

Judge of the
Superior Court